

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

JACOB SANCHEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER JASEN PEREZ, Shield No. 10775, SERGEANT FRANCIS HERNANDEZ, SERGEANT ROSS and POLICE OFFICERS JOHN DOES #1-10 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

Defendants.

----- X

SUMMONS

Index No.:

The Basis of Venue is:

Location of Incident

Plaintiff designates Bronx County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
March 20, 2016

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
Police Officer Jasen Perez, Shield No. 10775, 46th Precinct, 2120 Ryer Avenue, Bronx, NY 10457
Sergeant Francis Hernandez, 46th Precinct, 2120 Ryer Avenue, Bronx, NY 10457
Sergeant Ross, 46th Precinct, 2120 Ryer Avenue, Bronx, NY 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

JACOB SANCHEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER JASEN PEREZ, Shield No. 10775, SERGEANT FRANCIS HERNANDEZ, SERGEANT ROSS and POLICE OFFICERS JOHN DOES #1-10 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

Defendants.

----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, JACOB SANCHEZ, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On March 20, 2013, at approximately 11:30 p.m., plaintiff, Jacobs Sanchez, while lawfully inside of his girlfriend's apartment, located at 1865 University Place, Apartment 4B, Bronx, New York, was subject to an unlawful seizure, search, detention, false arrest, false imprisonment, and use of excessive force by the individually named defendant police officers. Plaintiff was denied the right to due process and the right to a fair trial in violation of the Fifth and Fourteenth Amendments to the United States Constitution when the defendant police officers provided the Bronx County District Attorney's Office with falsified, incomplete and misleading evidence when the defendants provided the DA's Office with the facts that gave rise to the arrest. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully seized, searched, detained, falsely arrested, falsely imprisoned, used excessive force against plaintiff and denied plaintiff a right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution and the common law of the state of New York.

PARTIES

2. Plaintiff Jacobs Sanchez is a resident of the State of Connecticut.

3. Defendant Police Officer Jasen Perez, Shield No. 10775, is and was at all time relevant herein an officer, employee, and agent of the New York City Police Department.

4. Defendant Police Officer Jasen Perez, Shield No. 10775, is and was at all relevant times herein assigned to the 46th Precinct.

5. Defendant Police Officer Jasen Perez, Shield No. 10775 is being sued in his individual and official capacity.

6. Defendant Sergeant Francis Hernandez, is and was at all time relevant herein an officer, employee, and agent of the New York City Police Department.

7. Defendant Sergeant Francis Hernandez, is and was at all relevant times herein assigned to the 46th Precinct.

8. Defendant Sergeant Francis Hernandez is being sued in his individual and official capacity.

9. Defendant Sergeant Ross, is and was at all time relevant herein an officer, employee, and agent of the New York City Police Department.

10. Defendant Sergeant Ross, is and was at all relevant times herein assigned to the 46th Precinct.

11. Defendant Sergeant Ross is being sued in his individual and official capacity.

12. Defendant New York City Police Officers JOHN DOES #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Defendant Police Officers JOHN DOES #1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department (“NYPD”) as part of and in conjunction with its municipal function.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

18. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

19. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

20. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

21. On March 20, 2013, at approximately 12:00 p.m., plaintiff’s girlfriend, Roxanna Lopez, boarded a BX12 MTA bus at the University Avenue and Fordham Road bus stop with her 7 year old son.

22. Ms. Lopez intended on going to visit her Uncle, Jose Cruz, who was ill at the time.

23. Ms. Lopez and her son boarded the bus and looked for seats to sit down, however the bus was crowded and they had to stand.

24. Two teenage girls were sitting on the bus near where Ms. Lopez and her son were standing, and without provocation or legal justification, the two teenage girls pushed Ms. Lopez’s son.

25. The two teenage girls then starting cursing and verbally abusing Ms. Lopez.

26. Immediately thereafter, the two teenage girls began physically assaulting Ms. Lopez, punching and striking her numerous times in the face causing Ms. Lopez to suffer physical injuries, including but not limited to, bruising all over her face.

27. Upon information and belief, one of the passengers on the bus called 911 and reported the assault on Ms. Lopez by the two teenage girls.

28. The bus driver stopped the bus at the next bus stop, which was Sedgwick Avenue and Fordham Road and all of the passengers had exit the bus.

29. When the bus stopped at Sedgwick Avenue and Fordham Road, the two teenage assailants ran away.

30. Several minutes later, two police officers responded to the scene and spoke with Ms. Lopez, as well as the bus driver.

31. Upon information and belief, the police officers filled out a complaint report and the MTA bus driver filled out an incident report.

32. Thereafter, Ms. Lopez and her son took a cab to her Uncle's house and Ms. Lopez stayed at her Uncle's house until approximately 8:00 p.m.

33. At some point during the day after the attack on Ms. Lopez, she called plaintiff and told him what had happened to her.

34. Plaintiff told Ms. Lopez he would come over to her apartment later that night to console her and make sure she was alright.

35. On March 20, 2013, at approximately 9:00 p.m., plaintiff arrived at Ms. Lopez's apartment located at 1865 University Place, Apartment 4B, Bronx, New York and consoled her and tended to her injuries from the assault that occurred earlier that day.

36. Thereafter, plaintiff went to sleep, and Ms. Lopez stayed up and was watched television.

37. On March 20, 2013, at approximately 11:30 p.m., Ms. Lopez heard loud banging on her apartment door and individuals yelling.

38. Ms. Lopez opened the door and several police officers, including the individually named defendant police officers, unlawfully entered the apartment.

39. After the officers unlawfully entered the apartment, they entered the bedroom where plaintiff was sleeping and ordered plaintiff to get out of bed.

40. Plaintiff complied with the defendant officers' orders and got out of bed.

41. At no time did the defendant police officers find any guns, drugs, or illegal contraband inside the apartment or in plaintiff's possession, custody or control.

42. Defendants did not have an objective factual basis to believe plaintiff committed a crime or violated the law in any way.

43. The defendant police officers spoke to Ms. Lopez, and asked her how she sustained the physical injuries she had on her face.

44. Ms. Lopez explained to the defendant police officers that she had been attacked earlier in the day by two girls on an MTA bus, and filed a police report regarding the incident.

45. Moreover, at no time did Ms. Lopez state to the defendant police officers that plaintiff assaulted her in any way.

46. Notably, plaintiff and Ms. Lopez have been in a relationship for approximately 10 years, and have never had any incidents of domestic violence.

47. Based upon the objective facts known to the police officers, the police officers lacked any objective basis to reasonably believe plaintiff committed any crime, broke any law, or assaulted Ms. Lopez.

48. Nevertheless, the defendant police handcuffed plaintiff, and arrested plaintiff without legal justification or probable cause.

49. As a result of the handcuffs being tight, plaintiff sustained physical injuries to his wrists.

50. Plaintiff asked the individually named defendant police officers to loosen the handcuffs; however the police officers refused to loosen the handcuffs.

51. Thereafter, plaintiff was transported to the 46th precinct.

52. While plaintiff was at the 46th precinct, the defendant police officers falsely stated to the Bronx District Attorney's Office that plaintiff had assaulted Ms. Lopez.

53. Specifically, the defendant police officers failed to communicate to the Bronx County District Attorney's Office that Ms. Lopez told the police officers that she had been assaulted earlier in the day by two teenage girls on the MTA bus.

54. The defendant police officers also failed to communicate to the Bronx District Attorney's Office that Ms. Lopez told the police officers plaintiff never assaulted her.

55. On March 21, 2013, at approximately 8:00 a.m., plaintiff was transported to Bronx Central Booking.

56. While plaintiff was at Bronx Central Booking, Ms. Lopez spoke with the Bronx District Attorney's Office and explained to them that plaintiff had not assaulted her, and

further explained that she had been assaulted earlier in the day on March 20, 2013 by two teenage girls on an MTA bus.

57. On March 21, 2013, at approximately 3:00 p.m., after approximately 16 hours in police custody, the Bronx District Attorney's Office declined to prosecute plaintiff, all charges were dismissed, and plaintiff was released out of the back door of Bronx Central Booking.

58. As a result of the March 20, 2013 incident, plaintiff suffered severe physical injuries, including injuries to both of his wrists from the excessively tight handcuffs.

59. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable entry and search of plaintiff's apartment, or the unjustifiable seizure, search, false arrest, false imprisonment, excessive force and denial of a fair trial.

60. The unlawful seizure, search, false arrest, false imprisonment, use of excessive force, and denial of the right to a fair trial of plaintiff by the individually named defendants caused plaintiff to sustain serious physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

61. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, falsely arrested and imprisoned and denied plaintiff the right to a fair trial. without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and in violation of plaintiff's right to due process under the Fifth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

65. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

66. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Denial of Right to Fair Trial

67. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

69. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

70. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

71. In withholding/creating false evidence against plaintiff Jacobs Sanchez and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

72. As a result of the foregoing, plaintiff Jacob Sanchez, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

74. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

75. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 74 with the same force and effect as if more fully set forth at length herein.

76. The use of excessive force by defendants in handcuffing plaintiff excessively tight caused severe physical injury, was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

77. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Failure to Intervene

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

80. Defendants failed to intervene to prevent the unlawful conduct described herein.

81. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

82. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

83. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

84. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 83 with the same force and effect as if more fully set forth at length herein.

85. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

86. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, arresting individuals without a specific, articulable factual basis supporting reasonable suspicion and/or probable cause that plaintiff committed a crime and fabricating allegations against an individual to justify the arrest, as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to these issues.

87. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

88. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

89. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

90. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully stopped, questioned, searched and arrested.

91. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

92. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

93. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Jacob Sanchez demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
March 20, 2016

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
Police Officer Jasen Perez, Shield No. 10775, 46th Precinct, 2120 Ryer Avenue, Bronx, NY 10457
Sergeant Francis Hernandez, 46th Precinct, 2120 Ryer Avenue, Bronx, NY 10457
Sergeant Ross, 46th Precinct, 2120 Ryer Avenue, Bronx, NY 10457

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
March 20, 2016

_____/s/_____
STUART E. JACOBS